

Zeyaul Hasan v. State of U.P. — disputed demand relegated to clause 6.5

High Court of Judicature at Allahabad · Division Bench · 23 May 2022 · WRIT - C No. - 33807 of 2021 · **Writ disposed; petitioner relegated to a para 6.5 objection; coercive action stayed eight weeks.**

HEADNOTE

A weaver sought certiorari to quash a demand of Rs.23,74,064 and mandamus to decide his representation. On the licensee's statement that an objection would be decided in accordance with law within a time-bound period, the Allahabad High Court disposed of the writ without expressing any opinion on merits. Liberty was granted to submit an objection under para 6.5 of the U.P. Electricity Supply Code, 2005 before respondent no. 4 within four weeks; if submitted, it was to be decided after hearing within the next four weeks. Coercive action on the demand was stayed for eight weeks or until disposal of the objection, whichever was earlier.

FACTUAL SUMMARY

Zeyaul Hasan, a weaver, sought quashing of a demand notice dated 31.08.2021 for Rs.23,74,064 issued by the Executive Engineer, Vidyut Vitran Khand-I, U.P.P.C.L., Mau, and a mandamus to decide his representation dated 15.09.2021. He claimed regular deposit of bills under a State Government scheme and alleged the demand was baseless harassment. Counsel for Purvanchal Vidyut Vitran Nigam Ltd. stated that an objection to the demand would be decided in accordance with law within a time-bound period.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

disputed-bill-alternate-remedy

HOLDING

Without expressing any opinion on merits, a writ seeking quashing of an electricity demand and a direction to decide a representation is disposed of by granting liberty to submit an objection under para 6.5 of the U.P. Electricity Supply Code, 2005 before the concerned officer within four weeks; if so submitted, the objection shall be decided in accordance with law within the next four weeks after hearing, and no coercive action shall be taken on the demand for eight weeks or till disposal of the objection, whichever is earlier. ¶ 1

PRINCIPLE TAGS

clause-6.5-alternate-remedy-to-writ Writ to quash a Rs.23.74 lakh demand was disposed without merits, relegating the consumer to a para 6.5 objection with a time-bound decision and limited stay of coercive action. ¶ 1

clause-6.5-statutory-remedy-disputed-bill The Court treated para 6.5 as the statutory forum for the consumer's objection to the impugned demand rather than examining the bill in writ jurisdiction. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — CORRECTNESS OF THE DEMAND OF RS.23,74,064

The Court expressly declined to express any opinion on the merits of the petitioner's case. ¶ 1